

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 17, 2023, a complaint was received by this Agency filed by Mr. A.A.A. (hereinafter, the complainant) against TRAVEL SINGAPORE PTE. LTD. (hereinafter, the respondent) for not having duly addressed the right of rectification.

The complainant states that on July 4, 2023, he purchased a plane ticket from AIR FRANCE through the website TRIP.COM. Upon noticing that his personal data had been incorrectly recorded in the reservation of his ticket, he contacted the respondent, who indicated that rectification of the data was not possible since the data contained in the reservation did not match the passport provided. He notes that when contacted by AIR FRANCE, they informed him that it is the agency with which the tickets were contracted that must contact them and that they are willing to process the change of reference on the tickets; however, the agency indicated that it is AIR FRANCE that refuses to execute the rectification.

He also points out that the respondent mentioned in one of their responses that the date of birth of the complainant did not match the one on the passport provided for the processing of the reservation, although when contacted by AIR FRANCE, they confirmed that it does match the information contained in his passport.

He provides a copy of his passport, the conversation held with AIR FRANCE regarding the date of the passport, and a thread of communications exchanged with the respondent, where they indicate that they cannot process the change of passenger on the reserved ticket.

SECOND: Once the procedure provided for in Article 65.4 of the LOPDGDD was completed, the complaint was admitted for processing, and the respondent was granted a hearing period, to present any allegations they deemed appropriate within ten working days.

The respondent has not demonstrated, during the formalized procedures, that they have responded to the request for the exercise of rights presented by the complainant.

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THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on October 17, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any allegations they deemed appropriate within ten working days, without submitting any allegations within the established period.

LEGAL GROUNDS

I. Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II. Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response.

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The result of said transfer did not allow for the satisfaction of the claims of the complaining party.

Consequently, on October 17, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. Upon expiration of this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

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The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Rectification

Article 16 of the GDPR, which regulates the right to rectify inaccurate personal data, establishes the following:

“The data subject shall have the right to obtain from the data controller without undue delay the rectification of inaccurate personal data concerning them. Taking into account the purposes of the processing, the data subject shall have the right to have incomplete personal data completed, including by means of a supplementary statement.”

V

Conclusion

In the case analyzed here, the complaining party exercised their right to rectification before the complained party.

After the deadline established in accordance with the aforementioned regulations, their request did not receive the legally required response. The entity complained against has not addressed the request of the complaining party nor the requirements that have been sent to it by this Agency.

The aforementioned regulations do not allow the request to be overlooked as if it had not been made, leaving it without the response that the data controllers are obliged to issue, even in the event that there are no data of the data subject in the entity's files or even in those cases where the requirements are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with reasons indicating the causes for which the right in question cannot be considered.

Therefore, the request made obliges the data controller to provide an express response, in any case, using any means that justifies the receipt of the response.

Since a copy of the necessary communication that must be directed to the complainant informing them about the decision made regarding the request for the exercise of rights has not been provided, it is appropriate to accept the complaint that initiated the present procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the complaint filed by Mr. A.A.A. considering that the provisions of Article 16 of the GDPR have been infringed and to urge TRAVEL SINGAPORE

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TRAVEL SINGAPORE PTE. LTD. is instructed to, within ten working days following the notification of this resolution, send to the claiming party a certification addressing the requested right or providing a reasoned denial indicating the causes for which the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to TRAVEL SINGAPORE PTE. LTD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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